

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: December 5, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON RESPONDENTS' MOTION FOR LEAVE TO REPLY IN SUPPORT OF RECONSIDERATION

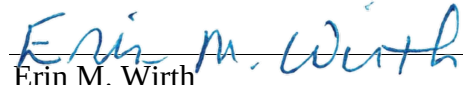
On September 6, 2024, Respondents filed a motion seeking reconsideration of an August 23, 2024, Order on Amended Complaint, Confidentiality, and 4th Revised Scheduling Order insofar as it granted Complainant's motion for leave to file an amended complaint. On September 13, 2024, Complainant filed a memorandum in opposition to the motion and a declaration with two exhibits. On September 17, 2024, Respondents filed a corrected motion which corrected the docket number in the caption of the motion.

On September 19, 2024, an order was issued denying the second motion for reconsideration or leave to appeal ("Reconsideration Order"). Later on September 19, 2024, Respondents file a motion for leave to file a reply and reply in support of motion for reconsideration ("Motion"). Complainant did not file a response to this motion.

Respondents contend that a motion to reconsider a dispositive motion is itself a dispositive motion under Commission Rules and that therefore, Respondents were entitled to file a reply. Such a reading would significantly delay proceedings. Respondents also contend that leave should be granted due to the Commission's decision in Docket No. 21-11, issued on August 27, 2024, although they acknowledge that the decision was addressed in its motion to reconsider. Complainant has not opposed the motion, therefore the reply will be permitted.

In the reply, Respondents contend that "alleged actions after 'informal' notices that amount only to bluster or idle threats will not give rise to retaliation claims" and that the factual basis for the claim here is a letter that was "something even less than an 'idle threat.'" Motion at 4-5. Having considered the arguments in the reply, it does not change the Reconsideration Order finding that "resolution of the retaliation claim here would depend on the context, including the factual issues regarding the letter and internal emails." Reconsideration Order at 3. Therefore, the request for reconsideration is denied for the same reasons outlined in the Reconsideration Order.

Therefore, it is hereby **ORDERED** that Respondent's request to file a reply be **GRANTED**. However, such consideration does not change the Reconsideration Order.


Erin M. Wirth
Chief Administrative Law Judge